Form A

Application for resource consent

Auckland Council
Te Kaunihera o Tāmaki Makaurau

Resource Consents Department Under Section 88 of the Resource Management Act 1991

To: Auckland Council
Private Bag 92300
Auckland 1142

You may post or deliver your application to your nearest Auckland Council service centre.

This form provides the council with your contact information and details about your proposal. If you need help completing this form or you are unsure about which form to use, visit **aucklandcouncil.govt.nz/resourceconsents** where you will find helpful guidance notes, or contact the council on 09 301 0101.

If you fail to complete this form and provide the necessary information, including the deposit fee, your application may not be accepted for processing. See Guidance Note 3.

Office use only

Application no(s): SUB 60315119

Receipt date:

Deposit paid:

Consent:

- ☐ District
- ☐ Regional
- ☐ Integrated
- ☐ Proposed Auckland Unitary Plan Decisions Version

Stream number:

1. Site location details:

Site(s) to which this application relates is described as:

No: 53B Street: Remiger Road

Suburb: Puhoi

Legal description(s) NA137A/506, NA105B/748, NA31C/965, NA2100/21 NA757/204

2. General application details:

This application is for (tick all the boxes necessary to cover the proposal):

District consent

- ☐ Land use consent (District/City)
- ☐ Subdivision consent

Relevant district plan section

- ☐ Auckland Central Area
- ☐ Franklin
- ☐ Papakura
- ☐ Hauraki Gulf Islands
- ☐ Manukau
- ☐ Rodney
- ☐ Auckland Isthmus
- ☐ North Shore
- ☐ Waitākere
- ☐ Proposed Auckland Unitary Plan Decisions Version

Regional consent

- ☐ Discharge permit
- ☐ Land use consent (Regional)
- ☐ Coastal permit
- ☐ Other (give details)
- ☐ Water permit

Relevant regional plan

- ☐ Coastal
- ☐ Farm dairy discharges
- ☐ Sediment control
- ☐ Proposed Auckland Unitary Plan Decisions Version
- ☐ Air, Land, Water

Is consent required under a National Environmental Standard (NES)?

☐ No ☐ Yes (give details)

3. Additional resource consents required:

3.1 Are any additional resource consent(s) required for this proposal but not being applied for under this application?

☐ No ☐ Yes (give details)

3.2 Advise of any existing consents and the date at which they expire. (Provide consent numbers and an assessment of the value of the investment of the existing consent holder (for the purposes of section 104(2A)).

4. Applicant's details (All invoices will be made out to and sent to the applicant unless otherwise stated in Section 6.):

Applicant's full name
(The name of the consent holder who will be responsible for the consent and any associated costs unless otherwise stated in Section 6)

Last Name: Nicklin First name(s): Raymond Charles

Last Name: Nicklin First name(s): Desma Elizabeth

or

Company/Trust/Organisation:

Contact person/All trustee names:

Ray Nicklin

Physical address:

Postcode:

Postal address: (If different from above)

PO Box 404243, Puhoi 0851

Postcode:

Phone (day): 09 422 0800 Mobile: 0274 795 922

Email: desma.n@mail.com ☐ Please tick if email preferred contact

The applicant is the:

☐ Owner ☐ Occupier ☐ Leasee

☐ Prospective purchaser (of the site to which the application relates) ☐ Other (please specify)

4.1 Name and address of each owner and occupier of land to which the application relates: (If different from above)

Name:

Address:

Postcode:

5. Agent's or consultant's details (All correspondence will be sent to the agent and may also be sent to the applicant unless otherwise stated in Section 6.)

Company: Cato Bolam Consultants

Contact: Jessica Reaburn

Postal address:

PO Box 157 Orewa

Postcode: 0946

Phone (day): 09 427 0072 Mobile:

Email: jessicar@catobolam.co.nz ☐ Please tick if email preferred contact

6. Alternative addresses for correspondence and payee of invoices

All correspondence (excluding invoices) sent to:

☐ Applicant ☐ Agent/Consultant ☐ Other (name and address)

Name: Cato Bolam Consultants

Address:

PO Box 157 Orewa

Postcode: 0946

All invoices made out to and sent to:

☐ Applicant ☐ Agent/Consultant ☐ Other (name and address)

Name: Ray and Desma Nicklin

Address:

PO Box 404243, Puhoi

Postcode: 0951

7. Description of proposed activity (If insufficient space, please provide on additional pages.):

Consent is sought for a rural subdivision to establish five additional freehold rural-residential allotments on the basis of protecting significant native bush.

8. Other activities

Choose either:

☑ There are no other activities that are part of the proposal to which this application relates.

☐ The other activities that are part of the proposal to which the application relates are as follows:
(Describe the other activities. For any activities that are permitted activities, explain how the activity complies with the requirements, conditions, and permissions of any Plan or regulation so that a resource consent is not required for that activity under section 87A(1) of the RMA.)

9. Pre-application information

Have you had a pre-application meeting with the council regarding this proposal?

☐ Yes ☑ No ☐ Copy of minutes attached

Date of meeting:

If 'yes', provide the reference number and/or name of staff member:

10. Site visit requirements

10.1 Is there a locked gate or security system restricting access by council staff?

☐ Yes ☑ No

10.2 Is there a dog on the property?

☑ Yes ☐ No

10.3 Provide details of any entry restrictions or hazards that council staff should be aware of, e.g. health and safety, organic farm, measures to inhibit the transfer of Psa-V etc.

Please contact both applicants to arrange visit.

11. Notification of your application

Are you requesting that the application be publicly notified?

☐ Yes ☑ No

If 'yes', please provide an executive summary below and an electronic version of your application for notification purposes.
Please refer to the Standards for submitting documents electronically found at the council's website **aucklandcouncil.govt.nz/resourceconsents**

12. Mana Whenua cultural values assessment and the Proposed Auckland Unitary Plan Decisions Version (PAUP DV)

12.1 Is your proposal located within a "Site or Place of Significance to Mana Whenua" as identified in the PAUP Decisions Version?

☐ Yes ☑ No

12.2 Is your proposal one of those types of activities where effects on Mana Whenua cultural values are required to be considered?

☐ Yes ☑ No

12.3 If 'yes' to 12.1 or 12.2, have you contacted all the relevant Mana Whenua groups to establish whether their values are affected by your proposal?

☐ Yes ☐ No

12.4 If 'yes', please provide details with your application of all Mana Whenua groups contacted and their responses.

Please note that providing this information with the lodgement of your application will assist in processing your application in a timely manner. If you have not provided the relevant information your application may need to be placed on hold while this information is obtained.

In any case, please note that the council can assist you in determining whether the PAUP DV provisions referred to above apply and, if so, which Mana Whenua groups need to be approached. For more information refer to the "Engaging with Mana Whenua" page at **aucklandcouncil.govt.nz**

13. Information to be submitted with your application

To satisfy the requirements of Section 88(2) and Schedule 4 of the Resource Management Act 1991 (RMA), please attach the following information to your application:

Accept/Reject

☐ Four copies (including one unbound) of all information, including plans, for all applications. If you are providing a PDF electronic version of all information, only two hard copies are required. Refer to Guidance note 2 for guidance on the preparation of plans. ☐

☐ Application deposit fee – refer to the council's Fees and Charges Schedule. Indicate method of payment below: ☐

☐ Cheque attached Amount paid $ ☐ Credit card

☐ Customer account Customer acc/number:

☐ Certificate(s) of Title less than three months old for the site to which this application relates. Attach the title and any consent notices, covenants, easements attached to the title if relevant or affected by the proposed activity. ☐

☐ Locality plan or aerial photo. Indicate the location of the site in relation to the street and other landmarks. Show the street number of the subject site and those of adjoining sites. ☐

☐ Detail(s) of the resource consent(s) being applied for including reference to specific rule(s) and reasons for consent. ☐

☐ An assessment of effects on the environment in accordance with Schedule 4 of the RMA at a level of detail that corresponds with the scale and significance of the effects that the proposed activity may have on the environment. This may require one or more technical specialist reports. Include a full description of the proposed activity, the effects that may be generated and how these would be managed. For more information refer to Schedule 4 of the RMA and the council's Guidance note 1. ☐

☐ An assessment against the matters in Part 2 of the RMA. This may be included in your AEE or in a separate document. For more information refer to Schedule 4 of the RMA and the council's Guidance note 1. ☐

☐ An assessment against any relevant provisions of a statutory document (e.g. district and regional plans, the PAUP DV, National Policy Statements etc.). This may be included in your AEE or in a separate document. For more information refer to Schedule 4 of the RMA and the council's Guidance note 1. ☐

☐ Include other information required by the relevant section of the operative district plan, an operative regional plan, the PAUP DV, the RMA or any regulations made under that act. ☐

☐ Include details (name, postal and site address) of consultation undertaken (including with iwi) and any responses from persons consulted. For more information refer to Schedule 4 of the RMA and Guidance note 1. ☐

☐ A completed checklist where relevant to your application. ☐

14. Additional information – for regional consents or permits only under operative regional plans or the PAUP DV

14.1 Map reference of proposed works: mE mN

Use New Zealand Transverse Mercator (NZTM), e.g. 1756730mE 5919740mN.

Ensure that the location of your activity is marked to an accuracy of 10 metres on your location plan. You can obtain your map coordinates and an aerial photo from the Auckland Council GeoMaps (GIS viewer) found on the home page of the council's website, **aucklandcouncil.govt.nz**

14.2 Please provide the map reference of discharge points if relevant.

Map reference of proposed discharge or take point(s): mE mN

Is the discharge/take location on the same property as the application site?

☐ Yes ☐ No

If 'no', complete the details below.

Name or property owner: (If not the same)

Address:

Postcode:

Legal description:

☐ Documentation confirming easement and/or covenants for wastewater, including a certificate of title for the property where the discharge occurs.

If required, also attach land owner approval.

14.3 Give the name of any stream, river or lake (or if the stream is unnamed, state which water body it is a tributary of).

Stream name: or tributary of:

14.4 Please indicate the duration for which you are requesting a permit (if relevant):

years

15. Signature of the applicant(s) or agent

Please read these notes before signing the application form

Payment of fees and charges

The council may charge the applicant for all costs actually and reasonably incurred in processing this application. Subject to the applicant's rights under sections 357B and 358 of the RMA to object to any costs, the applicant undertakes to pay all and future processing costs incurred by the council. The council may issue interim invoices for applications. If any steps, including the use of debt collectors and/or lawyers, are necessary to recover unpaid processing costs, the applicant agrees to pay all collection costs. If this application is made on behalf of a trust (private or family), a society (incorporated or unincorporated) or a company, in signing this application the applicant binds the trust, society or company to pay all the above costs and guarantee to pay all the above costs in their personal capacity. Refer to the council's Fees and charges schedule found at: **aucklandcouncil.govt.nz/resourceconsents**

Note: Some regional permits include ongoing annual charges in addition to the processing fee. These are payable by the consent holder.

Development and financial contributions

When granting consent to certain activities, the council may levy a monetary contribution. Development contributions are levied under the Local Government Act 2002 in accordance with the council's Development Contribution Policy. Financial or reserve contributions are levied under the RMA under the relevant district plan. When such contributions become due, the consent holder is responsible for their payment. Unless otherwise advised, the name and contact address of the person responsible for payment of any contributions will be taken as the applicant.

Alternative contact and address for development and financial contributions:

Name:

Address:

Postcode:

Site visit
By signing this form, if you are the owner of the application site, you confirm that the council may undertake a site inspection.

Privacy information
The council requires the information you have provided on this form to process your application under the RMA and to collect statistics. The council will hold and store the information, including all associated reports and attachments, on a public register. The details may also be made available to the public on the council's website. These details are collected to inform the general public and community groups about all consents which have been processed or issued through the council. If you would like to request access to, or correction of any details, please contact the council.

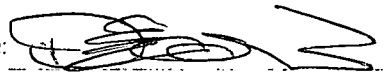
Declaration for the applicant or authorised agent or other

I/we confirm that I/we have read and understood the notes above.
If a private or family trust is the applicant, at least two New Zealand-based trustees are required to provide contact details and sign this form.

Applicant's name: Raymond Nicklin

Applicant's signature:  Date: 29-1-18

Applicant's name: Desma Nicklin

Applicant's signature:  Date: 29.1.18

Applicant's name:

Applicant's signature: Date:

Declaration for the agent authorised to sign on behalf of the applicant

As authorised agent for the applicant, I confirm that I have read and understood the above notes and confirm that I have fully informed the applicant of their/its liability under this document, including for fees and other charges, and that I have the applicant's authority to sign this application on their/its behalf.

Agent's full name:

Agent's signature: Date:

Our Ref: 40320

2 February 2018

Auckland Council
Northern Resource Consenting & Compliance
Private Bag 92300
AUCKLAND 1142

AUCKLAND COUNCIL
12 FEB 2018

Dear Sir/Madam

RESOURCE CONSENT APPLICATION
Client: Ray Nicklin and Desma Nicklin
Location: 53B Remiger Road, Puhoi

We enclose a Resource Consent Application prepared by Cato Bolam Consultants on behalf of Ray Nicklin and Desma Nicklin

We look forward to being advised of the receipt date and processing officer's details.

We enclose the following for your action:

- Two copies of the application report and supporting documentation.

We kindly ask Council to generate an invoice for the required deposit fee. Upon receipt our client will arrange payment via internet banking. Please email the invoice to Desma: ***desma.n@mail.com*** and a hard copy to Ray at PO Box 404243, Puhoi, 0851 with an email copy to rhondak@catobolam.co.nz.

If you have any queries or require further information, please do not hesitate to contact me.

Yours faithfully
CATO BOLAM CONSULTANTS LTD

Myles Goodwin
PRINCIPAL
LT-C-RCAP-ac-app report covering letter

Encl

CATO BOLAM
CONSULTANTS

Ray Nicklin and Desma Nicklin

53B Remiger Road, Puhoi

Resource Consent Application

Our Ref: 40320
Date: 30th November 2017

Report Prepared by:	Report Reviewed by:
Jessica Reaburn	Myles Goodwin
Environmental Planner	**Principal**

APPLICATION AND PROPERTY DETAILS

Applicant's Agent:	Cato Bolam Consultants Limited (Orewa Office)
Report Author:	Jessica Reaburn
Site Address:	53B Remiger Road, Puhoi
Applicant's Name:	Ray Nicklin and Desma Nicklin
Agents Details:	Cato Bolam Consultants Limited PO Box 157 Orewa 0946 Attention: Myles Goodwin and Jessica Reaburn Phone: 09 427 0072 Email: mylesg@catobolam.co.nz / jessicar@catobolam.co.nz
Submission Date:	February 2018
Legal Description and C/T:	NA137A/506, NA105B/748, NA31C/965, NA2100/21, NA757/204, NA127B/898
Site Area:	302.3006ha
Operative Plans Applying:	Auckland Council District Plan (Rodney Section) 2011 Auckland Unitary Plan (Operative in Part) 2016
Zoning:	General Rural Rural – Rural Production
Controls / Overlays:	Natural Resources: Natural Stream Management Areas Overlay Natural Resources: Significant Ecological Areas Overlay – SEA_T_2535 Natural Resources: Significant Ecological Areas Overlay – SEA_T_6407 Natural Heritage: Outstanding Natural Landscapes Overlay – Area 46, Upper Puhoi Valley
Designations:	N/A
Other Applications Required:	None

Contents

1.0 Introduction 1

1.1 Proposal in Brief 1

1.2 Main Issues Raised by the Proposal 1

2.0 Site and Locality Description 1

2.1 Site Description 1

2.2 Locality Description 1

3.0 Proposal 2

3.1 Relevant Background 2

3.2 The Proposal 2

3.2.1 Site Layout and Design 2

3.2.2 Significant Native Bush Protection 3

3.2.3 Stormwater Management 4

3.2.4 Servicing 4

4.0 Reasons for the Application 4

4.1 Overview 4

4.2 Summary of Resource Consent Requirements 5

4.3 Auckland Council District Plan (Rodney Section) 5

4.3.1 Zoning 5

4.3.2 Activity Status 5

4.4 Auckland Unitary Plan 7

4.4.1 Zoning 7

4.4.2 Activity Status 7

4.5 Overall Status of the Application 8

5.0 Application Assessment 9

5.1 Statutory Considerations and Weighting 9

5.1.1 Relevant Section of the RMA 9

5.1.2 Weighting of Plans 9

5.2 Section 104D 9

5.3 Section 104(1)(a) Actual and Potential Effects on the Environment 10

5.3.1 Permitted Baseline / Existing Environment 10

5.3.2 Positive Effects 10

5.3.3 Cultural Effects 11

5.3.4 Significant Vegetation and Landscape 11

5.3.5 Rural Character and Visual Amenity 11

5.3.6 Rural Productivity 12

5.3.7 Shape and Size of Sites 12

5.3.8 Traffic and Access 13

5.3.9 Infrastructure 13

5.3.10 Landform and Water Systems 13

5.3.11 Cumulative Effects 13

5.3.12 Adverse Effects Conclusion *14*

5.4 Section 104(1)(b)(vi) Relevant Provisions of the Regional / District Plans 14

Rodney District Plan *14*

5.4.1 Auckland Unitary Plan *18*

5.5 Section 104(1)(b)(v) Relevant Provisions of the RPS 20

5.6 Section 104(1)(b)(i) – (iv) Relevant provisions of NES, NPS and NZCPS 20

5.7 Section 104(1)(c) Other Matters 266

6.0 Notification (Sections 95A, 95C-95D) **266**

7.0 Consideration of Part 2 (Purpose and Principles) of the RMA **266**

8.0 Lapsing of Consent **27**

9.0 Conclusion **27**

10.0 Limitations **27**

Appendix A: Copy of Certificates of Title **28**

Appendix B: Scheme Plan A3 ..... **29**

Appendix C: Bush Assessment Report **30**

Appendix D: Riparian Planting and Management Report **31**

Appendix E: Weed and Pest Management Report **32**

Appendix F: Hydrology Report **33**

Appendix G: Geotechnical Report **34**

1.0 Introduction

1.1 Proposal in Brief

The proposal is to undertake a rural subdivision to establish five additional freehold rural-residential allotments on the basis of protecting 53.43 hectares ("**ha**") of significant native bush in the property at 53B Remiger Road and Tunnel Road, Puhoi. The site is a large sized rural farm with direct access from Remiger Road in the northeast and Tunnel Road to the south. A minor boundary change with an adjacent site is also proposed.

The site is currently held in four Certificates of Title, held together by covenant, which are provided in **Appendix A** to this document. The previous amalgamation of these titles allowed for the creation of rural residential lots in the northeast of the site. No previous bush protection subdivisions have been undertaken on the property.

This document is an Assessment of Environmental Effects ("**AEE**") prepared in accordance with the requirements of Section 88 of the Resource Management Act 1991 ("**RMA**") and the Fourth Schedule of the RMA. All matters required to be addressed under the RMA are set out in this AEE.

1.2 Main Issues Raised by the Proposal

It is considered that there are no significant resource management issues raised by this proposal. While a resource consent is required, the proposal satisfies all relevant plan provisions and there are no adverse effects that are more than minor.

2.0 Site and Locality Description

2.1 Site Description

The site consists of several linked titles located to the north of Tunnel Road, Puhoi, with the main farm entrance being located in the northeast off Remiger Road. The parent site and its location are shown in **Figure 1**.

The site has a mix of current land use including large tracts of native bush, areas of regenerating pasture land, and large expanses of grazed pasture with stock including cattle, sheep and deer. The topography of the property is generally steep, with generally north and south facing slopes around a valley in the centre, running down from neighbouring covenanted bush to the west.

The flattest parts of the property are in the east of the site around the farm access, where the yards and farm accessory buildings are located. The property's existing dwelling is also in the northeast of the site. The main access is towards the end of Remiger Road.

2.2 Locality Description

Remiger Road follows a tributary of the Puhoi River and is characterised by the Remiger Bush Scenic Reserve to the north, and rural lifestyle properties to the south ranging in size from smaller 1ha rural residential properties to larger rural blocks of 22ha or more.

Puhoi Village, located some 4km to the east of the site, is a rural village comprised of shops, a pub, play centre, library, church, and other community facilities. The main arterial route in the area, State Highway 1 ("**SH1**"), is located approximately 4.8km to the east of the site.

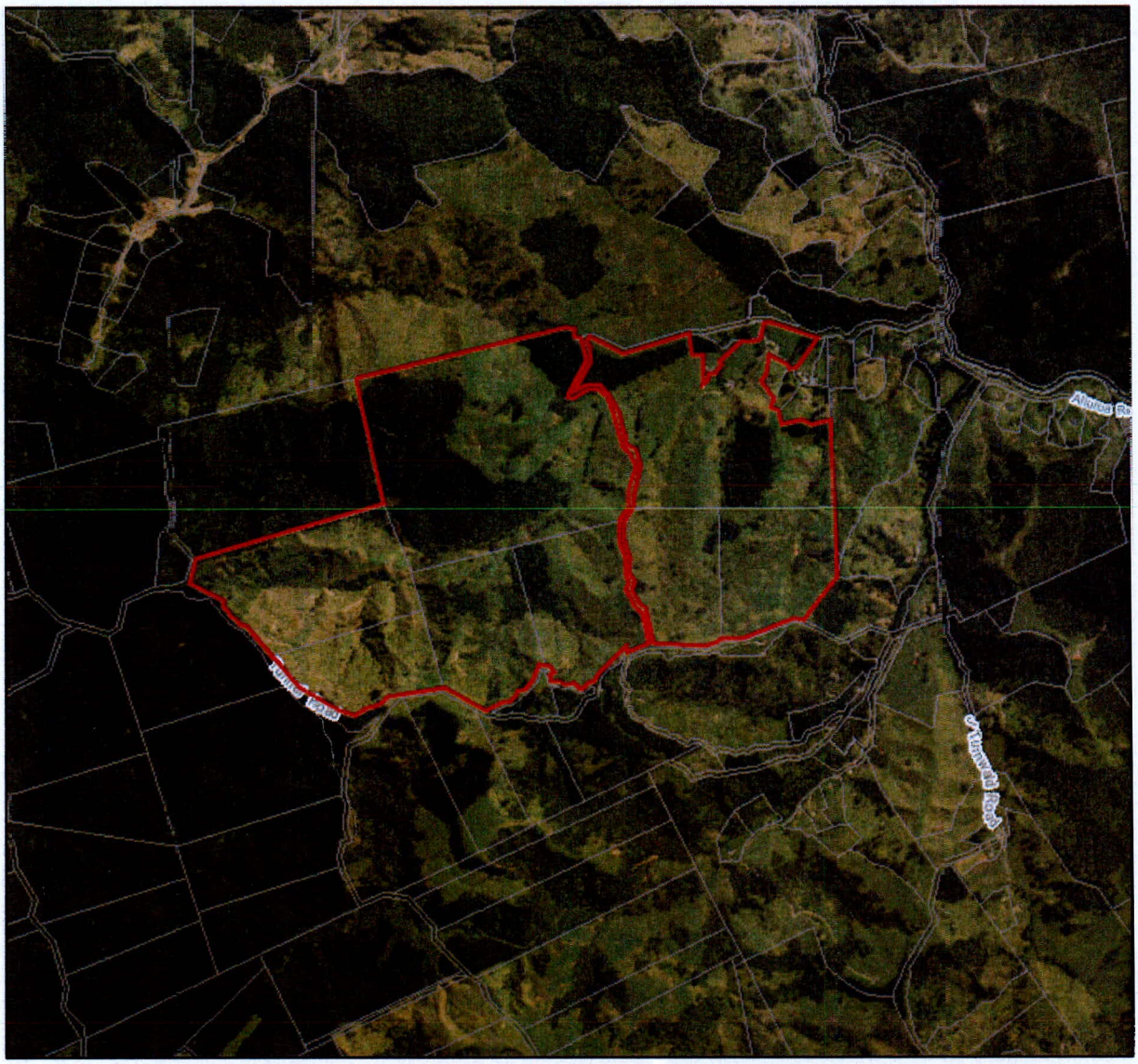


Figure 1: Location of site (highlighted in red) Remiger Road and Tunnel Road, Puhoi

The topography of the wider area is rolling to hilly, with a mix of pasture and remnant native vegetation, mainly in gullies. The land to the west of the property is the Puhoi Forest pine plantation, while to the northwest the neighbouring property contains wide tracts of covenanted bush. A large revegetation project is currently occurring across the steep parts of the property to the north.

3.0 Proposal

3.1 Relevant Background

The property has no legal constrictions or consent background that are considered relevant to the current application.

3.2 The Proposal

3.2.1 Site Layout and Design

The proposed subdivision will result in five additional rural residential allotments, with sizes between 1ha and 2ha to be accessed directly or via Right of Way ("**ROW**") from Remiger Road in the

northeast. Watercourses within the new lots will be planted and protected in association with the subdivision.

Lot 1 of the subdivision is 0.84ha in the north of the site with road frontage. The site is to be accessed directly from Remiger Road to the 2,000m^2 free of natural hazards as displayed. This lot will include the existing farm ancillary buildings in the south. This lot is smaller than 1ha due to the desire to leave the yards and woolshed to the south west in the larger farm.

Lot 2 of the subdivision is 1.13ha in the north of the site, bordering by Lot 1 and an existing ROW to the east and south. A stream runs along the eastern boundary which is to be protected by riparian planting to a width of 10m either side of the watercourse. The 2,000m^2 building platform is in the southwest of the lot and has road frontage to Remiger Road for access.

Lot 3 of the subdivision is 2.00ha and covers the land to the south of the driveway to the existing dwelling. Access is to be obtained across the proposed new ROW entering the northern end of the site at the end of Remiger Road. As the land in this lot is generally steep, the provided building platform is a smaller 1,000m^2. The area shown has been approved by geotechnical investigation as included in **Appendix G** to this document.

Lots 4 and 5 of the subdivision are 1.00ha each in size and contain a 2,000m^2 building platform, pasture land, and ephemeral streams along the northern and western boundaries which will be subject to riparian planting and protection. The northern boundary of Lot 5 will also have a strip of planting to provide screening for the neighbouring property to the north. Both sites will be accessed via ROW from Remiger Road to the north.

The remaining land will be retained in the balance lots, Lot 6 (96.95ha) and Lot 7 (197.94ha), which will remain amalgamated through covenant. The balance lots will include the existing dwelling, bush covenants, remaining native bush, and grazing land.

Lot 8 is a boundary change with Lot 5 DP 198556 that adds a small area of land to the north west part of this title. This would be under 10% of the site area (1.1705ha to 1.24ha (5.9%).

The Scheme Plan for the proposal is provided in **Appendix B** to this document.

3.2.2 Significant Native Bush Protection

Five stands of significant bush are proposed for protection in association with this application. The areas to protect are shown as Areas CL-CW on the Scheme Plan provided in **Appendix B**.

The assessed bush areas cover 53.43ha and meet the definition of native bush in the operative plans. The main vegetation type is remnant podocarp broadleaf forest, with some regenerating kanuka forest around the edges of this. The majority of the bush is currently grazed, but will be fenced off from stock in association with the application.

The ecological values of the bush are described in the Bush Quality Assessment Report provided in **Appendix C**. By way of summary, this assessment concludes that the areas of bush have vegetation quality exceeding the minimum requirements for acceptance based on the Appendix 7B criteria of the District Plan. Some of the bush is also identified as Significant Ecological Area ("**SEA**") under the Auckland Unitary Plan. Overall it is considered that protecting the bush will have significant benefits

for terrestrial fauna and flora and provide additional security for the conservation of bush in the wider landscape.

As part of these covenants it is proposed to undertake ongoing weed and pest animal control as detailed in the Weed and Pest Management Report provided in **Appendix E**.

It is noted that the stand of bush in the north of the property is currently proposed to remain uncovenanted. This is because only five additional lots are proposed to be created. Under the District Plan rules, the minimum bush area to be protected for five titles is 42ha and up to 52ha. Once 52ha is protected, a sixth title can be obtained. However, the applicants do not wish to create a sixth title on their property, so up to just over 52ha is proposed for protection.

3.2.3 Stormwater Management

The proposed stormwater management system for the site is detailed in the Hydrology Report provided in **Appendix F**. By way of summary, runoff from the roof area of the new dwellings on Lots 1 to 5 will flow to domestic storage tanks with a minimum storage capacity of 22,500 litres. Anticipated water use will mean for the majority of time there is storage available in the tanks for peak rainfall and this obviates the need for peak control of stormwater flows from the roof.

The driveway/paving of the future lots will be constructed with cross fall where practical to allow sheet flow discharge of runoff over pasture to natural drainage or may optionally be collected in catch pits and piped to the dispersal device.

The proposal will protect 53.43ha of significant native bush and 0.7ha of riparian planting, which will provide year round mitigation for the volume and speed of stormwater runoff. Overall, the proposal will result in hydrological neutrality.

3.2.4 Servicing

The site is not connected to a public sewerage system, stormwater system or drinking water supply. The future residential dwellings on Lots 1-5 would be able to utilise commercially available wastewater treatment systems that meet Council standards, the details of which would accompany future building consent applications. Appropriate on-site water supply will be addressed also at the building consent stage (i.e. tank design), together with stormwater control.

The provision of sufficient water supply for firefighting purposes will be provided via at least one tank on each title installed with firefighting hose fittings, or an alternative arrangement approved by the NZ Fire Service.

4.0 Reasons for the Application

4.1 Overview

Auckland Council is a Unitary Authority which is responsible for administering the various operative and legacy regional and district planning documents that apply within the Auckland Region. In respect to the relevant planning documents, those parts of the Proposed Unitary Plan Decision Version (19 August 2016) that are not subject to appeal were made operative on 15 November 2016 (Auckland Unitary Plan (Operative in Part ("**AUP(OP)**" or "**Unitary Plan**"). The rural subdivision rules in respect to transferable title creation and subdivision are subject to appeal therefore the Auckland

Council District Plan: Rodney Section 2011 ("**ACDP(RS)**" or "**District Plan**") is also relevant to this application.

4.2 Summary of Resource Consent Requirements

A summary of the activity status of the application against the rules in the relevant planning document(s) is provided in **Table 1**. This application seeks all necessary resource consents for the proposed subdivision, including (but not limited to) those identified in **Table 1.** Where resource consent is required, further detail is provided below **Table 1** if necessary.

Table 1: Summary of Activity Status.

ACTIVITY	PLAN / RULE	ACTIVITY STATUS	REASON
Subdivision for the Protection of Significant Bush	District Plan Rule 7.14.1.1	RD	The proposal meets all the requirements of Rule 7.14.3.2.
In-situ subdivision creating additional sites through the protection of SEA	Unitary Plan Activity E39.4.2 (A17)	NC	The proposed subdivision does not comply with Standard E39.6.4.4.
Boundary Change	Unitary Plan Activity E39.4.2 (A4)	C	The change in site area is less than 10%
Earthworks to create new ROW	Unitary Plan Activity E12.4.1 (A3) & (A7)	P	Earthworks to create the new ROW are not anticipated to exceed the permitted activity thresholds of up to $500m^2$ or $250m^3$, as for the most part the driveway is existing and will only require extension northwards to Remiger Road. General standards for permitted activity status are met (Standard E12.6.2). In regards to the Lot 2 building platform, this is in a flood plain and is likely to involve a total fill volume of greater than $10m^3$, however this work will be undertaken by the future owner and not as part of the subdivision.
Subdivision of land within the 1 percent annual exceedance probability floodplain	Unitary Plan Activity E39.4.1 (A8)	RD	The proposed subdivision complies with Standard E39.6.4.1 as each proposed site contains a specified building area meeting the General Standards (refer to Table 4 below).

In summary, resource consent is required under the following provisions.

4.3 Auckland Council District Plan (Rodney Section)

4.3.1 Zoning

The site is zoned General Rural under the District Plan.

4.3.2 Activity Status

Rule 7.14.1.1 provides for Subdivision for the Protection of Natural Areas in the General Rural Zone as a **restricted discretionary activity** subject to meeting the general requirements for subdivisions in

Rule 7.14.2; the relevant rules in Chapter 23 - Subdivision and Servicing; and the requirements of Rule 7.14.3.3.

The proposal is assessed against these requirements in **Table 2** below.

Table 2: Assessment of the proposal against the requirements for subdivision for protection of significant bush (Rule 7.14.3.2).

RULE	ASSESSMENT
Rule 7.14.3.3.1 General Requirements in Chapter 23 – Subdivision and Servicing:	
• 23.8.1 Compliance with Rules and Information Requirements	**Complies** – the proposal has been assessed against the relevant rules and assessment criteria of the District Plan and the application contains all of the relevant information required.
• 23.8.2 Section 224(c) Certificate	**Complies** - the property to subdivide has an existing Section 224(c) Certificate and Title.
• 23.8.3 Design Layout	**Complies** – the proposed lot boundaries take into account the topography and natural features within the site.
• 23.8.4 Natural Hazard Avoidance	**Complies** – a stable building site can be provided on each of the proposed new lots outside of flood prone and hazard areas.
• 23.8.5 Land to be Suitable	**Complies** – the size, shape and arrangement of the sites are considered to be suitable and appropriate for the General Rural Zone.
• 23.8.6 Vehicle and Legal Access	**Complies** – the new rural residential lots will gain vehicular access directly or via ROW to a legal road.
• 23.8.7 Maximum Road Gradients and Road Intersections	N/A
• 23.8.8 Restrictions on the Creation of Cul De Sacs	N/A
• 23.8.9 Provision of on Road Parking Spaces	N/A
• 23.8.10 Servicing of Subdivisions	**Complies** - the proposed new lots would be capable of being serviced on-site for sewage and stormwater collection, treatment and disposal and water supply. The treatment and disposal of sewage effluent shall be contained within the site boundaries.
• 23.8.11 Performance Criteria for Servicing of Subdivisions	**Complies** – the servicing of the subdivision will be provided in accordance with the Rodney District Council Standards for Engineering Design and Construction.
• 23.8.12 Additional Assessment Criteria for Servicing of Subdivisions	The servicing of the subdivision will meet the additional assessment criteria.
• 23.8.13 Indicative Road and Indicative Reserves	N/A
• 23.8.24 Esplanade Reserves and Esplanade Strips	N/A
Rule 7.14.3.2.1 Number of sites allowed	**Complies** – Rule 7.14.3.2.1 provides for five additional rural residential sites through the protection of over 42ha of continuous native bush.
Rule 7.14.3.2.2 Assessment of Native Bush and	**Complies** – The bush meets the Appendix 7B

RULE	ASSESSMENT
Significant Natural Areas	acceptance criteria.
Rule 7.14.3.2.3 Location of Native Bush, and Site for Dwelling	**Complies** - The bush areas will be contained wholly within a balance lot, without the requirement for bush removal.
Rule 7.14.3.2.4 Protection of Native Bush	**Complies** - The bush areas will be protected permanently with stock proof fencing and be made free of pest plants and pest animals controlled.
Rule 7.14.3.2.5 Area to be Protected	**Complies** – Significant native bush on the parent site up to the upper limit specified for the number of lots will be protected.
Rule 7.14.3.2.6 Minimum and Maximum Site Size	**Complies** – The new rural-residential lots will be within the complying 1-2ha.
Rule 7.14.3.2.7 Minimum frontage and access	**Complies** – a minimum frontage of 6 m for the new rural residential site is provided either directly on the road or via ROW.
Rule 7.14.3.2.8 Design of Subdivision	Rule 7.14.3.3.8(a) (refers to Rule 7.14.3.2.8): • Rule 7.14.3.2.8(a) – **N/A** – no more than five new sites are proposed. • Rule 7.14.3.2.8(b) – **complies**. A Conservation Subdivision Plan is provided in **Appendix B.** • Rule 7.14.3.2.8(c)) – **complies**. No rural residential site is created within in the significant natural area to be protected. • Rule 7.14.3.2.8(d) – **N/A**. There are no Significant Mineral Extraction Resource Areas identified on the site. • Rule 7.14.3.2.8(e) – **complies**. Watercourses within the new rural residential lots are proposed for planting and protection.
Rule 7.14.3.2.9 Defined Building Area	**Complies** – the defined areas for building are identified on the Scheme Plan in **Appendix B**.

4.4 Auckland Unitary Plan

4.4.1 Zoning

The site is zoned Rural – Rural Production. Controls and overlays applicable to the site include:

- Natural Resources: Natural Stream Management Areas Overlay
- Natural Resources: Significant Ecological Areas Overlay – SEA_T_2535
- Natural Resources: Significant Ecological Areas Overlay – SEA_T_6407
- Natural Heritage: Outstanding Natural Landscapes Overlay – Area 46, Upper Puhoi Valley

4.4.2 Activity Status

Activity E39.4.2(A16) provides for in-situ subdivision creating additional sites through protection of indigenous vegetation identified in the Significant Ecological Areas Overlay, and complying with Standard E39.6.4.4 as a **restricted discretionary** activity. If the Standard is not met, the activity becomes **non-complying** (Activity E39.4.2(A17)).

The proposal is assessed against the relevant standard in **Table 3** below.

Table 3: Assessment of the proposal against the requirements for in-situ subdivision creating additional sites through protection of indigenous vegetation identified in the Significant Ecological Areas Overlay (Standard E39.6.4.4).

STANDARD	ASSESSMENT
E39.6.4.4.(1)	**Does not comply** – not all bush proposed for protection is identified as SEA.
E39.6.4.4. (2)	**Does not comply** – the proposal is in exceedance of the three maximum titles to be created in-situ and additional titles are proposed for the protection of non-SEA bush.
E39.6.4.4.(3)	**Does not comply** – a 20m buffer to the existing bush is not proposed as this would unnecessarily encroach onto farmland. The still operative District Plan only requires fencing on the boundary of the bush.
E39.6.4.4.(4)	**Complies** – the proposed new titles will be created on the parent site.
E39.6.4.4.(5)	**Complies** – The new rural-residential lots will be within the complying 1-2ha.
E39.6.4.4.(6)	**Complies** – all areas to be protected are shown on the Scheme Plan in **Appendix B**.
E39.6.4.4.(7)-(9)	**Complies** – the bush to be protected is not already protected and is to be protected as a requirement before issuance of the new titles.
E39.6.4.4.(10)-(12)	**Complies** – the bush will be subject to a legal covenant subject to ongoing management as outlined in the Management Plan included in **Appendix E**.

Subdivisions under Table E39.4.2(A16) must also comply with the relevant standards in E39.6.1 General Standards as set out in **Table 4** below.

Table 4: Assessment of the proposal against the general subdivision requirements (Standard E39.6.1.).

STANDARD	ASSESSMENT
E39.6.1.1. Specified Building Area	**Complies** – A specified building platform is shown on each rural residential lot. The specified building platforms have been approved by geotechnical investigation (**Appendix G**) where considered necessary, are located outside of natural hazard overlays and will be linked to the road by appropriate vehicle accesses.
E39.6.1.2. Access and entrance strips	**Complies** – The proposed sites have immediate access to Remiger Road.
E39.6.1.3. Services	**Complies** – The proposed new lots would be capable of being serviced on-site for sewage and stormwater collection, treatment and disposal and water supply. The treatment and disposal of sewage effluent shall be contained within the site boundaries. The provision of sufficient water supply for firefighting purposes will be provided via at least one tank installed with firefighting hose fittings, or an alternative arrangement approved by the NZ Fire Service.
E39.6.1.4. Staging	**N/A** – no staging is proposed.
E39.6.1.5. Overland flow paths	**Complies** – the proposal has been designed to incorporate overland flow paths and no downstream flood hazards are anticipated.
E39.6.1.6. Existing vegetation	**Complies** – the plan included in **Appendix B** denotes these features.

4.5 Overall Status of the Application

Overall, the status of the application is considered to be a Non-Complying Activity.

5.0 Application Assessment

5.1 Statutory Considerations and Weighting

5.1.1 Relevant Section of the RMA

When considering an application for a non-complying activity the Council as consent authority must have regard to Part 2 of the RMA ("Purposes and Principles" – sections 5 to 8), and sections 104, 104D and 108 of the RMA.

Subject to Part 2 of the RMA, when considering an application for resource consent and any submissions received the Council must, in accordance with section 104(1) of the RMA have regard to the matters addressed in 5.2 – 5.7 below.

5.1.2 Weighting of Plans

The AUP(OP) activity relevant to this application, being E39.4.2(16) providing for in-situ subdivision creating additional sites through protection of indigenous vegetation identified in the SEA overlay, is under appeal. The main aspects of the appeals relating to this application are:

- Applicability of individual assessment against Schedule 3 SEA criteria to allow the activity to apply to areas not currently identified as SEA; and
- Ability to create more than three in situ titles through the protection of SEA identified or SEA quality assessed indigenous vegetation.

Resolution of appeals in favour of the above corrections would be in line with the Independent Hearings Panel ("**IHP**") recommendations for the rules, and also generally consistent with the rules of the ACDP(RS).

It is therefore considered in the case of this application, which is in line with the recommendations of the IHP to which the appeals relate, that more weighting should be given to the still operative ACDP(RS).

5.2 Section 104D

As outlined, the application is a non-complying therefore it is required to be assessed under section 104D of the RMA. Section 104D states:

> *(1) Despite any decision made for the purpose of], a consent authority may grant a resource consent for a non-complying activity only if it is satisfied that either—*
>
> *(a) the adverse effects of the activity on the environment (other than any effect to which] applies) will be minor; or*
> *(b) the application is for an activity that will not be contrary to the objectives and policies of—*
> *(i) the relevant plan, if there is a plan but no proposed plan in respect of the activity; or*
> *(ii) the relevant proposed plan, if there is a proposed plan but no relevant plan in respect of the activity; or*
> *(iii) both the relevant plan and the relevant proposed plan, if there is both a plan and a proposed plan in respect of the activity.*
>
> *(2) To avoid doubt, section 104(2) applies to the determination of an application for a non-complying activity.*

The environmental effects of the proposal are set out below in Section 5.3.1 of this AEE. Overall, the effects are considered to be minor for the purposes of section 104D(1)(a).

The objectives and policies of the relevant planning documents are set out below in Section 5.4. In respect to section 104D(1)(b), it is noted:

- The application achieves a restricted discretionary status under the District Plan which retains more weighting in the case of non-identified SEA as it allows for an individual assessment to take place. The proposal is not contrary to the objectives and policies of the District Plan as outlined in Section 5.4.1 of this report.

- It is considered that the bush clearly meets the quality standards required under the District Plan and could meet the Schedule 3 SEA criteria had an individual on site assessment of the vegetation been undertaken where the SEA were identified, as further outlined in the Bush Quality Assessment Report included in **Appendix C**. The largest bush area proposed for protection is identified as SEA.

- Protection of SEA quality vegetation in exchange for the creation of in-situ rural residential lots is considered to achieve the objectives and policies of the Unitary Plan, as outlined in Section 5.4.2 of this report. More in situ lots are proposed than what is allowed under the provisions, however, these will be located in an existing cluster and will not detract from the existing character of the area.

Given the above, section 104D is no impediment to the granting of consent and the application can be further considered under section 104.

5.3 Section 104(1)(a) Actual and Potential Effects on the Environment

Section 104(1)(a) of the RMA requires that a council have regard to any actual and potential effects on the environment of allowing the activity.

5.3.1 Permitted Baseline / Existing Environment

Pursuant to section 104(2), when forming an opinion for the purposes of section 104(1)(a) a council may disregard an adverse effect of the activity on the environment if the plan or a NES permits an activity with that effect (i.e. a council may consider the "permitted baseline"). Refer to Section 5.2 above.

Pursuant to section 104(3)(a), when forming an opinion for the purposes of section 104(1)(a) a council must not have regard to any effect on a person who has given written approval to the proposal, nor any trade competition or effects of trade competition.

5.3.2 Positive Effects

The proposal will have the positive effect of providing five additional dwellings for future residential accommodation. It is generally acknowledged the Auckland has a housing shortage and this proposal contributes to Auckland's undersupplied housing market.

The 53.43ha of significant bush and riparian planting proposed to be protected will have positive effects on habitat by providing nesting, feeding and breeding sites for native fauna. Stock exclusion will allow the understory of these stands of threatened forest ecosystems to further regenerate.

Slopes above a significant watercourses will be stabilised and enhancement of water quality and improved freshwater habitat will be achieved. The proposal will protect a large portion of the significant bush on the property to provide beneficial ecological stepping stones between larger fragments of bush in the vicinity.

The proposed management for the covenant areas, including weed and pest control, should keep weed and pest numbers down to acceptable levels, benefitting the wider ecosystem around the site.

Overall it is considered the protection of the native bush and revegetation planting proposed to undertaken will create positive environmental effects effectively mitigating any potential adverse effects resulting from the proposed development.

5.3.3 Cultural Effects

In respect to this property, there are no recorded sites of significance to mana whenua. The proposed new lots will be created away from any significant native vegetation and will include riparian planting to enhance the watercourses present. Cultural effects are anticipated to be less than minor.

5.3.4 Significant Vegetation and Landscape

No significant natural features or native wildlife will be adversely affected as a result of the proposed development. On the contrary, 54.13ha of native bush and riparian planting will be protected.

It is noted that the western part of the site is located within the 'Outstanding Natural Landscape – Area 46, Upper Puhoi Valley' overlay. The Unitary Plan describes this Outstanding Natural Landscape ("**ONL**") as *"Very dramatic and dissected hill country with a complex sequence of stream corridors in which mature native forest dominates the higher slopes and ridge crests flanking lower lying pasture. Includes the bush covered escarpment following the Puhoi River."*

This area is identified as having high to very high natural sciences factors, aesthetic values, and expressiveness values. The bush protection will be located largely within this overlay on upper slopes of the property, in line with the overlay description.

In the event of the proposed rural residential lots being created, these are located entirely outside the ONL and therefore no significant changes to the topography and landform of the site will result. The main change to the landscape will be permanent protection and regeneration of native bush, which is considered to be adding to the ecological and aesthetic values of the area. The new household units will be viewed against the backdrop of the protected bush areas, with native bush continuing to dominate views of the landscape in keeping with the surrounding vegetation patterns.

The adverse effects on the natural landscape are therefore considered to be less than minor. In addition, the ongoing protection through fencing and covenanting of the bush and riparian planting will provide ongoing ecological benefits.

5.3.5 Rural Character and Visual Amenity

The site is zoned General Rural in the District Plan and Rural Production in Unitary Plan. These zones are characterised by large properties with a low intensity of settlement and an environment that is less modified and dominated by natural features. The proposed subdivision will result in five additional lots in lieu of the protection of 53.43ha of significant native bush. The proposed

subdivision is therefore consistent with the provisions for the General Rural zone and the additional lots are anticipated by the District Plan. All new lots are to be located in the northeast of the site bordering an existing cluster of smaller lot sizes.

The new sites will be located in the flattest area of land on the property, which is located to the south of the formed extent of Remiger Road, and for these reasons provides the best fit in absorbing the proposed new development. None of the proposed houses will be highly visible from off the site are they are mostly located low in the environment. The exception to this is the proposed dwelling on Lot 3, however this is screened by road users travelling west by the knoll to the northeast, and for road users travelling east the view will be fleeting. The proposed riparian planting in the new rural residential lots will double as screen planting for the neighbouring site to the north.

The landform naturally lends itself to this spatial layout of development, all buildings will be setback and when viewed within the wider context of the landscape will not appear out of character, therefore maintaining general rural amenity. Views from surrounding roads (Ahuroa, J Tolhopf) will be intermittent and screened by the surrounding vegetation, with low exposure due to the limited public use of roads in this area. The proposed accesses to the sites are predominantly located across existing drives, and will remain metalled rather than concreted, so as not to stand out significantly in the landscape.

The site sizes proposed are not out of character with the receiving environment as several sites of similar size, used mainly for rural residential living, are located in the general vicinity, including immediately adjacent the property's entrance and along Remiger Road. The development will comply with the site size provisions and provides significant ecological (and amenity) benefits through the permanent formal protection of significant native bush. The very large (295ha) balance site will contribute to the retention of open space.

Overall, it is considered the landscape character change will not be more than minor. The rural character of the site will not be compromised, with the proposal seeking to make the most efficient and effective use of the existing land resources whilst protecting high quality ecological features on the site.

5.3.6 Rural Productivity

Different rural based activities can have the ability to generate adverse effects on the productivity of rural activities on neighbouring sites. The introduction of five additional rural residential lots in this particular location will not adversely affect the rural productivity of the surrounding sites, as these are either already rural residential lots, or utilised for native bush protection or pine plantation.

In regards to the subject site itself, the bush areas will be retired from grazing in association with the proposed covenants. However, it is noted the bush is largely located across very steep land generally unsuitable or difficult for farming. The remainder of the site will be retained for rural productive use, with over 200ha of farm land retained. Farm buildings in the northeast of the site will also be retained for their current use. Less than minor effects on rural production are therefore anticipated.

5.3.7 Shape and Size of Sites

The new sites are a practical and usable shape and have been designed around existing access, buildings, topography and natural hazard limitations. The majority of land currently in rural productive use will be retained in the balance site. The new rural residential lots will contain small

areas of pasture for hobby farming if desired. No adverse effects are anticipated from the proposed lot placement.

5.3.8 Traffic and Access

Access to the new lots can be achieved either directly from the road or via existing and extended ROWs from Remiger Road. Accesses will be shared where possible reducing the total number of crossings onto Remiger Road. The access is also from more or less the end of Remiger Road, where total vehicle movements are limited only to residents.

It is considered the proposal will not generate adverse levels of traffic, with the receiving roading network having suitable capacity to accommodate the five new proposed sites.

5.3.9 Infrastructure

The creation of five new vacant rural residential lots will result in a minor increased demand on infrastructure. The applicant accepts this and that the imposition and payment of standard development contributions will be required.

The proposed vacant lots (and any proposed future residential dwellings) will be able to utilise commercially available wastewater treatment systems that meet Council standards (e.g. TP58), the details of which will accompany future building consent applications. All effects can be contained within the proposed new lots.

Appropriate on-site water supply will be addressed also at the building consent stage (ie tank design), together with stormwater control, noting that the new sites are of a sufficient size to be able to suitably contain runoff on the basis of hydraulic neutrality as described in the Hydrology Report provided in **Appendix F** to this document.

5.3.10 Landform and Water Systems

The landform will not be altered in any way that could be considered adverse. The proposed development will not require any significant landform modification, thus retaining the intrinsic visual qualities of the naturally undulating landscape, together with improvements to the quality of the receiving waters through riparian planting.

In respect to the construction of the ROW, this will largely be undertaken along an existing gravel driveway, while the extension north to Remiger Road will be across flat ground. Erosion and sediment controls will be implemented to ensure sediment does not enter waterways. Stormwater management will include application of site design principles, construction practices, and maintenance.

The nominated building sites are considered to be stable and suitable for residential dwellings, including suitable and stable access routes.

5.3.11 Cumulative Effects

The five new sites proposed in this application will be created in close association with existing rural residential lots at the end of Remiger Road. The District Plan considers that the clustering of five or more rural residential sites together reduces the adverse cumulative effects on rural character and amenity of areas by avoiding the dispersion of buildings, service and hardstand areas, driveways and

separate entrances widely across sites. Furthermore by undertaking this type of subdivision pattern the larger donor sites are retained for continued farming activities or the conservation of native bush and wetland, as is the case in this subdivision where rural character will be maintained, as described in Section 5.3.5.

Having regard to the above analysis it is considered that any adverse effects on the receiving environment are less than minor.

5.3.12 Adverse Effects Conclusion

Overall, based on the above assessment, it is concluded that the actual and potential effects of the proposal, including positive effects, will be less than minor.

5.4 Section 104(1)(b)(vi) Relevant Provisions of the Regional / District Plans

As outlined, the relevant plans applying to this proposal are the District Plan and the Unitary Plan. An assessment of the application against the relevant provisions of these planning documents is provided below.

5.4.1 Rodney District Plan

The following objectives, policies and assessment criteria of the ACDP(RS) are considered relevant:

- **Chapter 7 – Rural (All Rural)**
    - Objectives 7.3.1, 7.3.2, 7.3.3, 7.3.5, 7.3.6, 7.3.7, 7.3.8, and 7.3.10
    - Policies 7.4.2, 7.4.4, 7.4.5, 7.4.6, 7.4.7, 7.4.8, 7.4.9, 7.4.10, 7.4.15, and 7.4.16

Discussion

The Rural zone is characterised by minimal subdivision and development, large and small areas of bush, scrub, and wetlands which sustain the district's native plant and animal biodiversity, rural character and high amenity values. The above objectives and policies seek to manage, protect and enhance rural character, high amenity values and biodiversity values by limiting rural subdivision and development to subdivision which results in the protection of significant vegetation, wetlands and wildlife habitats, or enhancement planting, which can offset some of the adverse effects of subdivision on the environment and landscape values.

The proposal is in accordance with these objectives and policies, as it will enhance the rural character of the district by protecting and enhancing significant areas of native bush, providing ecological connections and corridors, and ensuring the long-term preservation of native habitat. The subdivision is of a nature, scale, intensity and location generally consistent with the District Plan (Policy 7.4.2).

The retention of nearly 300ha of balance lot will contribute to maintaining the rural character of the area. The lot yield is in line with what is anticipated in the plan through protection of significant bush, with an additional 11.43ha of bush being protected above the minimum requirement for five lots. Protecting native vegetation will maintain and enhance the rural character of the area (Policy 7.4.3).

Policy 7.4.4 relates to amenity values, and the application is in accordance with this. Given the smaller sizes of the new rural residential lots, and the larger sizes of the balance lot and covenant areas, the ratio of open space to buildings will remain overall high, excepting in the concentrated cluster of lots around Remiger Road, where such a cluster already exists.

The dominant features of the balance lot will be grazing pasture and protected tracts of native bush, thus the potential new dwellings will not detract from landscape values. The new lot boundaries incorporate existing divisions on the site, so are ideally located to avoid unusual or adverse effects in this regard.

The required amount of native bush on the site will be protected and enhanced through covenanting, and no removal, damage, destruction or modification to the native vegetation on the site will occur (Policy 7.4.8). Furthermore, the ongoing protection of the natural habitats will create ecological benefits which provide sufficient mitigation for any adverse effects, as per the intention of the District Plan rules. Policy 7.4.10 will be achieved through protection of the bush, which will also expand existing covenants to the northwest and provide stepping stones with covenants to the south.

The proposal has been designed to be hydrologically neutral and only a small amount of earthworks will be required to facilitate the subdivision (Policy 7.4.15).

Overall it is considered the density of development will not compromise the amenity values anticipated in this zone, and is consistent with existing development in the area and Rural Zone provisions.

- **Chapter 7 – Rural (General Rural)**
    - Objectives 7.8.1.1.1, 7.8.1.1.2, 7.8.1.1.3, and 7.8.1.1.4
    - Policies 7.8.1.2.1, 7.8.1.2.2, 7.8.1.2.3, 7.8.1.2.4, 7.8.1.2.5, 7.8.1.2.11, 7.8.1.2.13, and 7.8.1.2.14

Discussion

The General Rural zone is recognised in the District Plan as being characterised by large properties, low intensity of settlement, significant natural areas, with an environment less modified by humans and generally dominated by farming activities. Rural residential lifestyle opportunities can be accommodated where the scale and intensity of settlement will avoid adverse effects on existing character and amenities, and where they result in native habitat restoration, land rehabilitation or the protection of significant bush, wetlands and wildlife habitat.

The proposed subdivision will result in the protection of significant bush and wildlife habitat and continued native habitat restoration, enhancing the natural character and amenity values of this particular landscape (Objective 7.8.1.1.1 and Policy 7.8.1.2.7). The capacity of the land unit to accommodate further development based upon protecting significant natural areas is provided for in the District Plan (Policy 7.8.1.2.2).

The protection of the bush will have significant benefits for native fauna and flora (Objective 7.8.1.1.2), and will ensure the continuance of improved water runoff to the downstream catchment, resulting from an increase in understorey vegetation after stock exclusion. The permanent

protection proposed will ensure the natural areas on the site continue to improve, enhancing their significant ecological value and maintaining and restoring a high quality wildlife habitat. The development will also be hydrologically neutral (Policy 7.8.1.2.3 and Policy 7.8.1.2.14).

The proposed subdivision will result in a diversity of site sizes which will enable continuation of rural activities in accordance with Policy 7.8.1.2.11. In respect to cumulative effects (Policy 7.8.1.2.4 and 7.8.1.2.13), these have been discussed earlier and it is noted that the permanent protection and management of bush provides benefits that will offset any perceived adverse effect of the proposed subdivision. Open pasture land and protect native vegetation will continue to dominate the landscape in this area.

Overall the discussion above shows that the proposal is consistent with the relevant Objectives and Policies of the General Rural Zone.

- **Chapter 7 – Rural (Assessment Criteria)**
    - Rule 7.15.2 – Assessment Criteria: All Subdivision

Discussion

(a) Other Provisions – an assessment of the proposal against the objectives and policies for the rural zone is provided above.

(b) Rural Character – as outlined, less than minor adverse effects on rural character will result from this proposal.

(c) Shape and size of site and *(w) Layout and scale* - the new sites will have a practical shape, incorporating existing site boundaries, buildings and ROWs. The balance lot will contain the covenant areas as well as pasture land for continued rural use.

(d) Earthworks – future dwelling and driveway construction in the new lots can be completed in such a way that avoids substantial landform modification.

(e) Features to be protected – the bush areas on the site will be appropriately protected by way of covenants. The nominated building platforms are sited clear of the significant natural features to be protected as part of this development.

(f) Entranceways and *(g) Vehicle access* – the new lots will be suitably accessed from public road via existing and new accesses.

(h) Quarrying – not applicable.

(i) Visual amenity – as outlined previously, the proposal will not detract from the visual amenity of the area in any way that is more than minor.

(j) Natural hazards - land instability is the only avoidable natural hazard that could possibly affect the new lot. As outlined, the building sites are generally on flat land, aside from the site within Lot 3 that has been subject to geotechnical assessment. The platforms are also free from any flood hazards or overland flow paths.

(k) Financial Contributions – The applicant is accepting of the payment of standard development contributions.

(n) Utilities and Traffic Generation – as outlined previously, the site can be suitably serviced with the receiving roading network having suitable capacity to accommodate five new rural-residential allotments. On-site power, water, stormwater and wastewater will be provided at the time of future building consent.

(o) Boundaries and building areas – the lot boundaries incorporate building areas suitable for development while taking into consideration access, natural geographic features and areas proposed for protection.

(p) Natural Features, (q) Fencing and *(r) Legal Protection* – The bush areas will be legally protected within the proposed covenant areas and stock will be excluded.

(s) Riparian margins – the watercourses within Lots 2, 4 and 5 are proposed for planting and protection.

(t) Hydrological neutrality – the Hydrology Report (**Appendix F**) concludes that flows can be kept to pre-development levels.

(x) Location and Design of Subdivision – The subdivision and future building placement has been carefully proposed to avoid any adverse effects on significant flora and fauna habitats.

(y) Maori Values – This has been discussed previously and there are no anticipated cultural issues with the proposal.

(z) Rural Productivity/Reverse Sensitivity – The location, design and density of the subdivision will not impact upon the productivity or management of established rural production activities.

(za) Water Quality – The potential development works associated with the subdivision will not adversely affect the natural quality of any water bodies. In contrary, the water quality of the streams will be improved through bush protection and planting of riparian margins.

(zb) Cumulative Effects – The application is in accordance with the rules of the District Plan, and these rules have been designed to avoid the creation of adverse cumulative effects.

(zc) Wildlife Values – The proposed building sites are set a suitable distance away from the natural areas maintaining wildlife habitats, and no native vegetation removal will be required. Overall wildlife habitats will be enhanced through the proposed bush protection and associated weed and pest management.

(zd) Ecosystem Health – The subdivision will not adversely affect any flora or fauna species within the site.

(ze) Human Impact – It is considered the proposed building platforms and accesses are sufficient distance from the proposed covenants so as to avoid adverse effects on transient or resident native fauna utilising these areas.

- **Chapter 7 – Rural (Assessment Criteria)**
    - Rule 7.15.4 – Assessment Criteria: Subdivision for the Protection of Natural Areas

Discussion

(a) Legal and physical protection – The significant bush will be both legally and physically protected, including weed and pest control.

(b) Significant natural areas and *(c) Adverse effects* – The subdivision will not adversely affect any areas identified on the District Plan maps as "Significant Natural Area".

(d) Vegetation clearance and earthworks – No vegetation clearance and no earthworks within the bush areas will be required.

- **Chapter 23 – Subdivision Provisions**
    - Objectives 23.3.1 and 23.3.3
    - Policies 23.4.1 and 23.4.2

Discussion

The subdivision design, including the size and shape of the sites, will create a pattern of landholding that can be used for rural purposes and accessed without creating adverse effects on the neighbourhood or environment (Objective 23.3.1). The proposal has been assessed against the General Rural Zone objectives and policies above, and it is concluded that the proposal will not significantly alter rural character, or adversely affect rural amenity values or the environment (Policy 23.4.1).

The provisions of Chapter 23 are to ensure that any new sites created are consistent with the provisions of the underlying zoning, can be adequately serviced without creating any off-site effects (Objective 23.3.3), each lot has a building platform which is free from any natural hazards and that the proposed development does not exacerbate any natural hazard on or off the site. The new sites have been designed to meet these requirements. Provisions for infrastructure services can be provided as described in Section 3.2.4 of this report (Policy 23.4.2). Overall it is considered the proposed development will not be contrary to the objectives and policies of Chapter 23.

5.4.1 Auckland Unitary Plan

The following objectives, policies and assessment criteria of the AUP(OP) are considered relevant:

- **Chapter E39 – Subdivision – Rural**
    - Objectives E39.2.1, E39.2.4, E39.2.6, E39.2.8, E39.2.10, E39.2.12, E39.2.14, and E39.2.15
    - Policies E39.3.1, E39.3.2, E39.3.3, E39.3.10, E39.3.11, E39.3.13, E39.3.15, E39.3.17, E39.3.18, E39.3.20, E39.3.26, E39.3.27, E39.3.28, E39.3.30, and E39.3.31

Discussion

The subdivision provisions for the rural zones overall focus on encouraging subdivision only within the Countryside Living Zone in order to preserve the rural environment across the remaining area. As notified, the Unitary Plan does not provide for the creation of more than three in-situ sites. Therefore this element of the proposed subdivision is not in line with the provisions of the Unitary Plan, however the titles based on the protection of SEA bush are.

The proposal is also considered in line with some of the other rural subdivision objectives and policies. The proposed subdivision has been designed in a manner to maintain rural character and amenity (Objective E39.2.8 and E39.2.15), and has a layout which is logical and in relatively close proximity to the rural settlement of Puhoi. There are no surrounding land uses which will be hindered in their use by the creation of the proposed new rural residential lots. Furthermore, the proposal will protect ecologically sensitive areas of the parent site in line with Objectives E39.2.12 & E39.2.14(a), and Policies E39.3.15 & E39.3.17-18. The proposed development will also ensure low visibility of the building platforms and promote retention of amenity values and rural character (Policy E.39.3.20(b) & (d), E39.3.26-27).

Furthermore, as outlined previously in this document, the subdivision provisions for the protection of significant indigenous vegetation have been appealed as a result of the Unitary Plan rejecting the recommendations of the IHP. The IHP version of the Plan (notified 22 July 2016) continued to provide for in situ subdivision creating more than three additional sites through the protection of indigenous vegetation, if the vegetation was either identified as SEA or assessed to meet SEA criteria (Activity E39.4.2A17), as a RD activity. SEA criteria ('factors') are outlined in Schedule 3 of the plan (Significant Ecological Areas – Terrestrial Schedule). The bush proposed for protection is not all identified as SEA, but is considered to meet SEA criteria as outlined in the accompanying Bush Quality Assessment Report.

It is therefore considered that the bush protection would meet the subdivision provisions desired by the appellants, in addition to those outlined in the IHP recommendations and former Auckland Council District Plan. On balance the zoning provisions of the Unitary Plan raise no new issues not already comprehensively addressed and the development will maintain consistency with the intent of the Unitary Plan.

- **Chapter H19 – Rural Zones (All Rural)**
    - Objectives H19.2.1.2, H19.2.1.4, H19.2.3.1, H19.2.3.2
    - Policies H19.2.2.4, H19.2.2.5, H19.2.4.1, H19.2.4.3

Discussion

The rural zone objectives outlined above focus on rural production, particularly in areas with elite soil, while avoiding fragmentation of this production land and providing for a range of activities and services to support rural production and living. The rural zone general policies support these objectives.

In terms of this application, the property is located in an area without elite soils and where vast areas of production land will be retained due to the large size of the property. The new lots will be

created in a cluster on the very edge of the property, thus not inhibiting or affecting the main farming operative. The proposal does therefore not significantly detract from the aims of the rural zone as it retains the existing character of the area.

The proposal directly meets the objectives for rural character, amenity and biodiversity values (Objectives H19.2.3.1-2, Policies H19.2.4.1 & 3) through the proposed bush protection and associated management which will improve biodiversity value. Rural productive activities can be continued on the balance site (Policy H19.2.2.4).

- **Chapter H19 – Rural Zones (Rural Production)**
    - Objective H19.3.2.2
    - Policy H19.3.3.1

Discussion

The purpose of the Rural Production Zone is to provide for the use and development of land for rural production activities and rural industries and services, while maintaining rural character and amenity values. The objectives and policies mainly refer to promoting rural production, forestry, and intensive farming operative. Subdivision is discouraged as it is considered inappropriate (Objective 19.3.2.2), and protection of significant natural areas is not encouraged at all.

This proposal is incommensurate with the subdivision intentions of the rural productive zoning under the Unitary Plan, however it is noted that the objectives only refer to protecting the land from inappropriate subdivision, whereas this subdivision is considered appropriate as it is generally in line with the rural zone and rural subdivision objectives and policies. Existing rural production on the property will continue to be provided for in line with Policy H19.3.3.1.

5.5 Section 104(1)(b)(v) Relevant Provisions of the RPS

The Regional Policy Statement (**"RPS"**) sets out strategic direction for managing the use, development and protection of the natural and physical resources of the region. The strategic objectives and policies provide a framework to achieve the integrated, consistent and co-ordinated management of the Region's resources.

The relevant provisions of the RPS have been considered. It is concluded the proposal is consistent with the RPS because the subdivision will not compromise the environmental values of the property. It will maintain and enhance the quality and integrity of the landform, together with protecting native bush and improving water quality. In this regard the trade-off of development rights enables the positive benefits of permanent protection of significant environmental values in a manner which does not compromise the underlying character, amenity, and productive use of the rural landscape.

5.6 Section 104(1)(b)(i) – (iv) Relevant provisions of NES, NPS and NZCPS

In terms of the applicability of the National Environmental Standard for Assessing and Managing Contaminants in Soil to Protect Human Health (**"NES Soil"**), to the sites, the aerial photos and discussions with the applicant have not identified any HAIL risks associated with the area where the new titles will be placed. Please see below a range of historical aerial photos of the site, none of them showing any evidence of cropping.

Scope: All new lot(s) as per scheme:
NES 'Production Land' exemption is applicable.

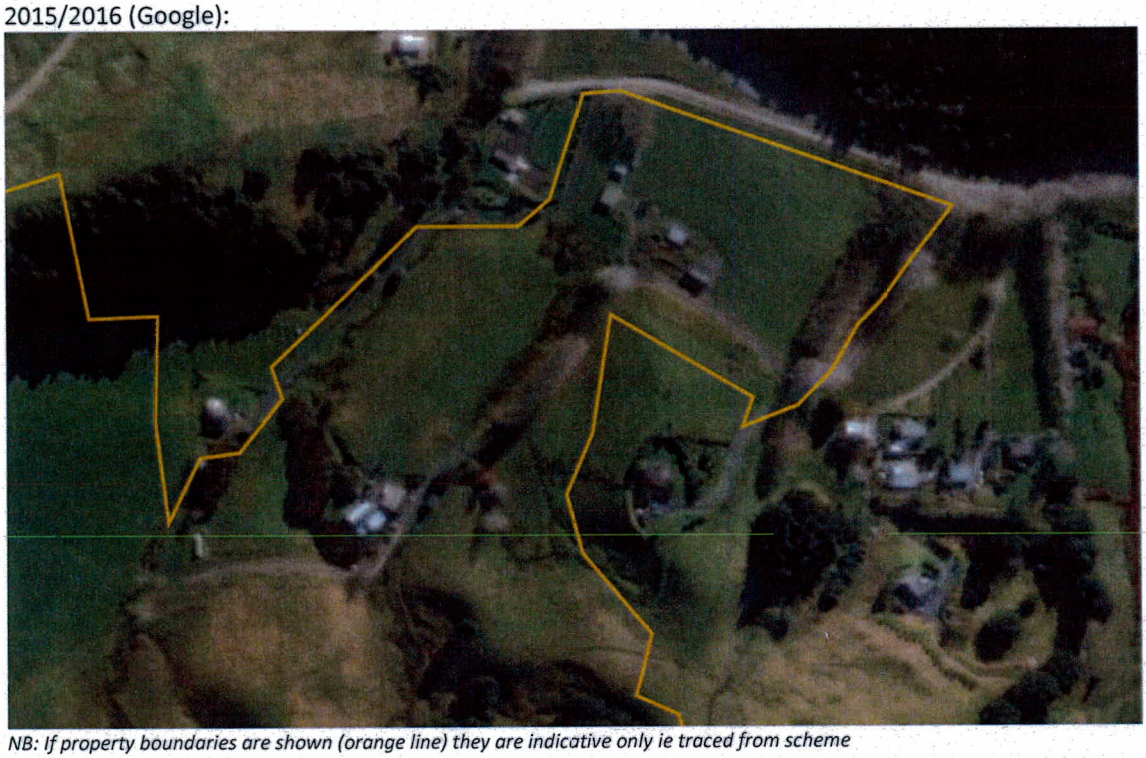
ATTACHED AERIALS:
X= not included as not checked or no extra info
Not available = not available on GIS etc

2017 (Google)



NB: If property boundaries are shown (orange line) they are indicative only ie traced from scheme

2015/2016 (Google):



NB: If property boundaries are shown (orange line) they are indicative only ie traced from scheme

2010/2011 AC GIS:



2003/04 (Google):

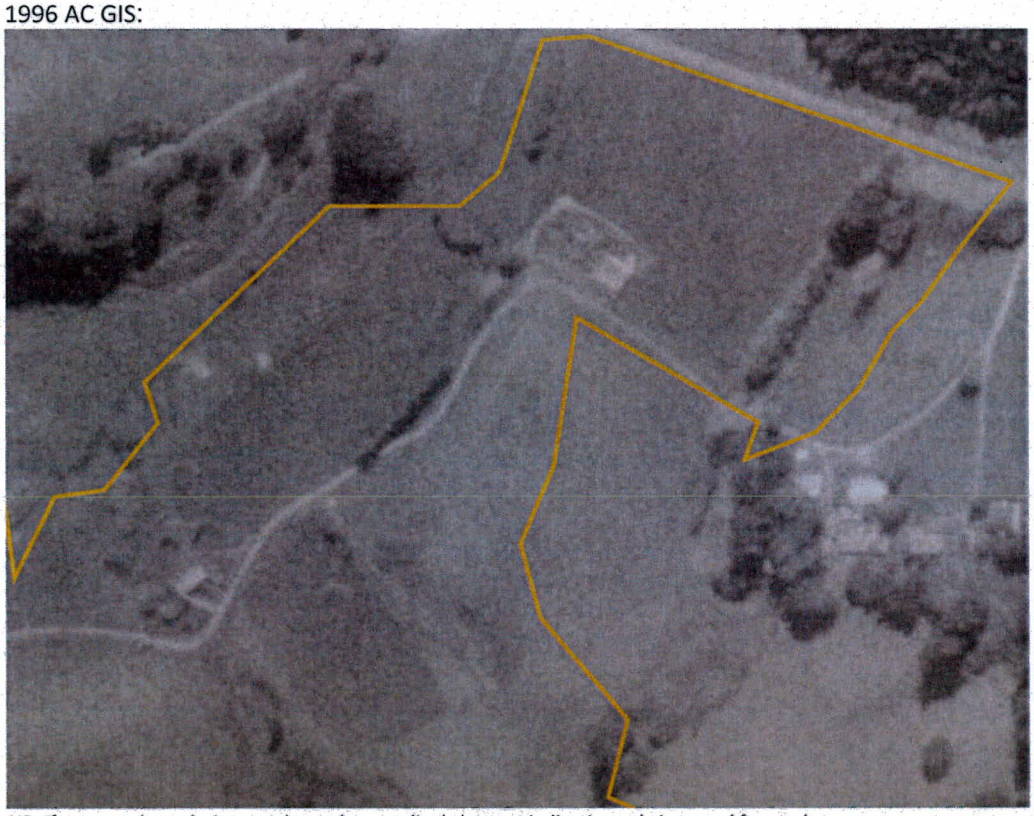


NB: If property boundaries are shown (orange line) they are indicative only ie traced from scheme

1999 AC GIS - 'Rodney':



1996 AC GIS:



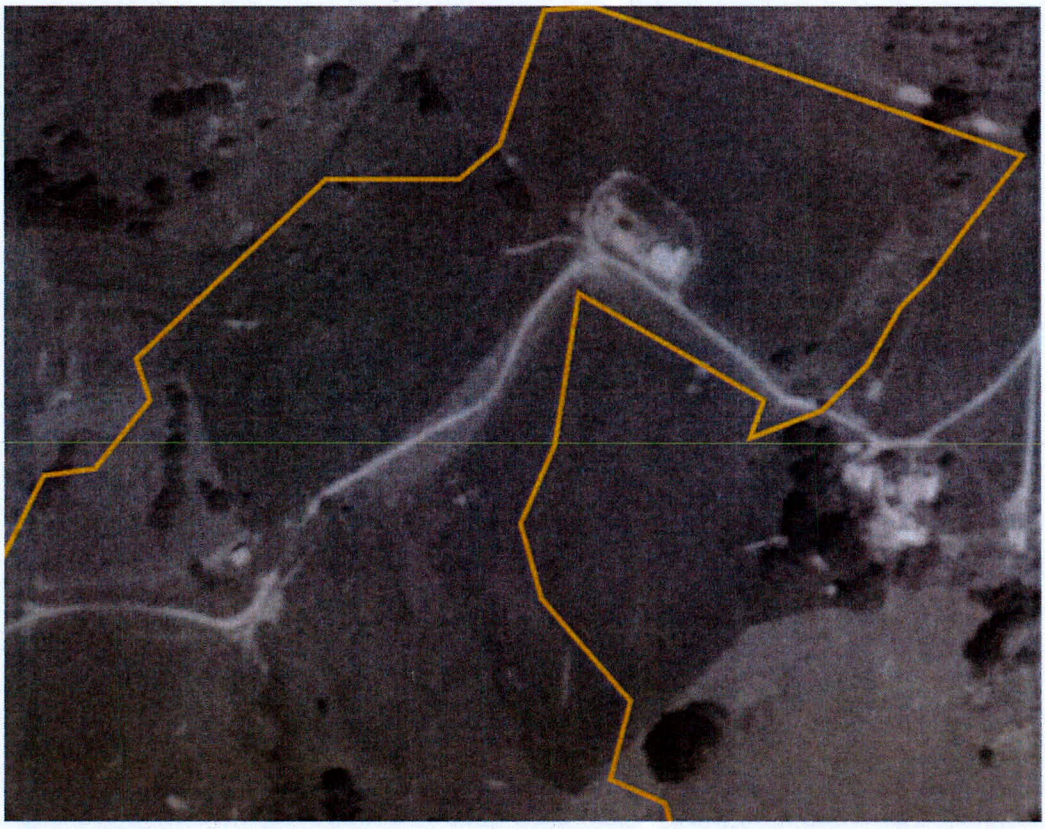
NB: If property boundaries are shown (orange line) they are indicative only ie traced from scheme

1989 Retrolens:



NB: If property boundaries are shown (orange line) they are indicative only ie traced from scheme

1977 Retrolens:



1975 Retrolens:



NB: If property boundaries are shown (orange line) they are indicative only ie traced from scheme

1968 Retrolens: Not Available
1963 Retrolens: Not Available
1950 AC Archives: Not available
1940 Retrolens: Not Available

There are no other National Environmental Standards or other regulations that apply to this application.

The New Zealand Coastal Policy Statement ("**NZCPS**") is not applicable to this application.

5.7 Section 104(1)(c) Other Matters

In this case there are no other matters that are considered necessary to determine the application.

6.0 Notification (Sections 95A, 95C-95D)

In relation to section 95A(2)(b) the applicant does not request public notification. In relation to section 95A(2)(c) there is no rule in a plan or a national environment standard that requires public notification.

In relation to section 95A(2)(a) and sections 95B, 95E-95F it is considered that any adverse effects are less than minor subject to the mitigation proposed in the application and which would be required as conditions of consent. No persons are considered to be adversely affected by the proposed subdivision or the eventual new dwellings or accessory buildings that could be built on the new lots being created.

In relation to section 95A(4) there are no special circumstances surrounding this application.

Pursuant to section 95A of the RMA, it is considered this application may proceed on a non-notified basis.

7.0 Consideration of Part 2 (Purpose and Principles) of the RMA

Section 5 in Part 2 identifies the purpose of the RMA as being the sustainable management of natural and physical resources. This means managing the use of natural and physical resources in a way that enables people and communities to provide for their social, cultural and economic well-being while sustaining those resources for future generations, protecting the life supporting capacity of ecosystems, and avoiding, remedying or mitigating adverse effects on the environment.

Section 6 of the Act sets out a number of matters of national importance which need to be recognised and provided for, and includes among other things and in no order of priority, the protection of outstanding natural features and landscapes, the protection of areas of significant indigenous vegetation and significant habitats of indigenous fauna, and the protection of historic heritage.

Section 7 identifies a number of "other matters" to be given particular regard by a council in the consideration of any assessment for resource consent, and includes the efficient use of natural and physical resources, and the maintenance and enhancement of amenity values. Section 8 requires a council to take into account the principles of the Treaty of Waitangi.

The proposal is considered to promote the sustainable management of natural and physical resources that enables people and communities to provide for their social, cultural and economic well-being while sustaining those resources for future generations. The adverse effects on the environment will be no more than minor and will ensure the ongoing protection and maintenance of areas of significant bush. Protecting these areas will provide security for the future of this native vegetation, adding ecological value and wildlife habitat to the area while also improving water quality runoff and creating protected ecological corridors. Overall the application is considered to meet the relevant provisions of Part 2 of the RMA.

8.0 Lapsing of Consent

Section 125 of the RMA provides that if a resource consent is not given effect to within five years of the date of the commencement (or any other time as specified) it automatically lapses unless the consent authority has granted an extension. In this case, it is considered five years is an appropriate period.

9.0 Conclusion

The proposal is to undertake a non-complying subdivision for the creation of five additional freehold rural residential allotments on the basis of 53.43ha of significant native bush protection. The proposal has been assessed under section 104D of the RMA and it is concluded that this is no impediment to the granting of consent.

The actual and potential effects likely to result from the proposed subdivision have been considered in accordance with section 104(1)(a) of the RMA, as set out in Section 5.3 of this AEE. By way of summary, it is concluded that any actual or potential effects on the surrounding environment will be less than minor, and the proposal will result in significant positive ecological effects. The proposed subdivision has also been assessed to be consistent with the relevant objectives and policies of the District Plan and the AUP (OP) in accordance with section 104(1)(b) of the RMA. The proposal also satisfies the relevant assessment criteria.

Overall, it is considered that the proposed development is consistent with the purpose and principles of the RMA and that the consent sought should be granted.

10.0 Limitations

This report has been prepared for the particular project described to us and its extent is limited to the scope of work agreed between the client and Cato Bolam Consultants Limited.

No responsibility is accepted by Cato Bolam Consultants Limited or its directors, servants, agents, staff or employees for the accuracy of information provided by third parties and/or the use of any part of this report in any other context or for any other purposes.

This report is for the use by the client only, and should not be used or relied upon by any other person or entity or for any other projects.

Appendix A: Copy of Certificates of Title

- Scanned Seperately

Appendix B: Scheme Plan A3

- Scanned Seperately

Appendix C: Bush Assessment Report

— Scanned Seperately

Appendix D: Riparian Planting and Management Report

– Scanned Seperately

Appendix E: Weed and Pest Management Report

Scanned Seperately

Appendix F: Hydrology Report

– Scanned Seperately

Appendix G: Geotechnical Report

Scanned Seperately